

Constitution of Aganang Burial Society

Article I: Name and Purpose

1. Section: Name

The name of this organization shall be the Aganang Burial Society, hereinafter referred to as "the Society".

The Aganang Burial Society (hereinafter referred to as "the Society") is a voluntary association formed for the purposes outlined in this constitution. The Society is not a licensed financial institution, insurance provider, or funeral service provider. While the Society endeavors to provide support and assistance to its members and their families in times of bereavement, it only guarantees financial assistance agreed on in this constitution but does not guarantee any indemnification for funeral expenses or related costs.

The Society operates on a communal basis, relying on membership dues, donations, and fundraising efforts to establish and maintain a communal fund for the benefit of its members. Participation in the Society is voluntary and does not confer any entitlement to financial assistance or other benefits beyond those expressly outlined in this constitution.

The Society reserves the right to amend or modify this constitution as deemed necessary, provided that such amendments are made in accordance with the procedures outlined herein and do not contravene the principles and objectives of the Society.

By becoming a member of the Society, individuals acknowledge and accept the terms and conditions set forth in this constitution, including this disclaimer.

2. Section: Purpose

The purpose of the Society is to provide financial and emotional support to its members and their families in times of bereavement and to promote responsible funeral planning and burial practices.

2.1. Financial support

- 2.1.1. To provide financial assistance to our members and their families during times of bereavement, alleviating the financial burden associated with funeral expenses and related costs.
- 2.1.2. To establish a communal fund through membership dues, donations, and fundraising efforts, ensuring sufficient resources are available to support members in need.

2.2. Emotional Support

- 2.2.1. To offer emotional guidance, comfort, and solidarity to members and their families as they navigate the difficult journey of grieving and mourning the loss of a loved one.
- 2.2.2. To foster a supportive community where members can share their experiences, seek solace, and find strength in unity during times of sorrow.

By fulfilling these objectives, the Aganang Burial Society strives to uphold its commitment to supporting members throughout their journey of loss and remembrance, fostering resilience, compassion, and solidarity within our community. Together, we honor the legacy of our departed loved ones and strengthen the bonds that unite us in times of sorrow and reflection.

3. Article II: Membership

3.1. Section: Eligibility

Membership in the Society shall be open to individuals who meet the following criteria:

- 3.1.1. Must be of legal age and sound mind.
- 3.1.2. Must subscribe to the objectives and values of the Society.
- 3.1.3. Must pay the required membership fees and dues.
- 3.1.4. The society shall all time be at the maximum of 30 members.
- 3.1.5. Every member should be allowed to cover five more people in the society.
- 3.1.6. Main member is required to hand the executive with the ID copies of the additional members to be covered by the society.
- 3.1.7. Members are allowed to add not more than two additional members of the age of 65 and above.

3.1.2. Section 2: Rights and Responsibilities

- 3.1.2.1. Members have the right to participate in the decision-making process of the Society, attend general meetings, and vote on matters that require membership approval.
- 3.1.2.2. Members are responsible for paying their membership fees and dues on time.
- 3.1.2.3. Members are encouraged to actively contribute to the activities and programs of the Society.

3.1.3. Section 3: Termination of Membership

Membership in the Society may be terminated under the following circumstances:

- 3.1.3.1. Resignation: Members may voluntarily resign from the Society by providing written notice to the Executive Committee.
- 3.1.3.2. Non-payment: Members who fail to pay their membership fees and dues within a specified three consecutive months may have their membership terminated.
- 3.1.3.3. Expulsion: Members may be expelled for conduct detrimental to the Society, as determined by a two-thirds majority vote of the Executive Committee.

4. Article III: Executive Committee

4.1. Section: Composition

- 4.1.1. The Executive Committee shall consist of elected officers who will serve as the governing body of the Society. The officers shall include:
 - 1. President / Chairperson
 - 2. Vice President / Vice Chairperson
 - 3. Secretary
 - 4. Assistant Secretary
 - 5. Treasurer
 - 6. Assistant Treasurer
- 4.1.2. Any additional positions deemed necessary by the Society.

4.2. Section: Duties and Responsibilities

- 2.1. President: The President shall preside over all meetings, represent the Society in external matters, and provide overall leadership.
- 2.2. Vice President: The Vice President shall assist the President in their duties and assume their responsibilities in their absence.
- 2.3. Secretary / Assistant Secretary: The Secretary shall keep records of all Society meetings, maintain membership records, and handle correspondence.
- 2.4. Treasurer / Assistant Treasurer: The Treasurer shall be responsible for the financial affairs of the Society, maintain accurate financial records, and provide regular reports to the membership.

4.3. Section: Election and Term of Office

- 3.1. The Executive Committee shall be elected by the general membership through a democratic voting process.
- 3.2. The term of office for elected officers shall be biennial (once every two years)
- 3.3. Officers may be re-elected for consecutive terms, subject to the approval of the general membership.

5. Article IV: Meetings

5.1. Section: General Meetings

- 5.1.1. General meetings shall be held monthly (2nd week of every new month) and all members shall be notified in advance.
- 5.1.2. Meetings will commence from 2pm on the stated date (1.1) and run for at most 2 hours.
- 5.1.3. The President, or in their absence, the Vice President, shall preside over the meetings.
- 5.1.4. A quorum must be present to conduct official business, with 50% plus 1 of the membership required.
- 5.1.5. Apologies will be only accepted if they are in written format to the society WhatsApp group or in a letter to be sent.
- 5.1.6. Apologies will only be accepted if they in the above (1.4) and are sent 5 hours before the meeting.
- 5.1.7. Member hosting the society is responsible for catering unless if monies for catering was not collected.

5.2. Section: Executive Committee Meetings

- 2.1. The Executive Committee shall meet as when it is required to discuss and make decisions on behalf of the Society.
- 2.2. The President, or in their absence, the Vice President, shall preside over the meetings.
- 2.3. A quorum must be present to conduct official business, with 50% plus 1 of the Executive Committee members required.

6. Article V: Finances

6.1. Section 1: Membership Fees and Dues

- 6.1.1 The treasurer's office is required to update the society on the financial in every meeting.
- 6.1.2 Membership fees and dues shall be determined by the Executive Committee and approved by the general membership.
- 6.1.3 R500 joining fee should be paid by the new member.
- 6.1.4 R200 shall be paid by member on the day of the meeting.
- 6.1.5 R70 for catering shall be paid by member on the day of the meeting. This will be used on the next meeting.
- 6.1.6 All members are required to pay their fees and dues on time.

6.2. Section: Membership Fines

- 6.2.1. Membership is considered late and shall be fined R30.00 if they arrive 15 minutes after the official opening of the by chairperson.
- 6.2.2. Membership shall be fined R50.00 if they do not come to the meeting on the date that the meeting is set and not formal written was submitted in time.
- 6.2.3. A member will be fined R200.00 for not coming and assisting if one covered member or main member request assistance as per the role of the society.
- 6.2.4. Member shall be fined R30.00 for contributing late towards catering.

6.3. Section: Financial Management

- 2.1 The Treasurer shall be responsible for the proper management and disbursement of Society funds.
- 2.2 The financial records of the Society shall be subject to periodic audits to ensure transparency and accountability.

7. Article VI: Amendments

7.1. Section 1: Amendment Process

- 7.1.1. Proposed amendments to this constitution must be submitted in writing to the Executive Committee.
- 7.1.2. The Executive Committee shall review and recommend proposed amendments to the general membership for approval.

7.2. Section 2: Approval

Proposed amendments shall be approved by a two-thirds majority vote of the general membership present at a duly constituted meeting.

7.3. Article VII: Dissolution

In the event of the dissolution of the Society, all remaining assets shall be distributed in accordance with applicable laws and regulations governing nonprofit organizations in the jurisdiction in which the Society operates.

This constitution shall take effect upon its adoption by a two-thirds majority vote of the general membership and shall supersede any previous constitutions or bylaws.

Adopted at Mabopane on the 12th day of May 2024.

Tebogo Lucus Mosime

[President's Name]

[President's Signature]

Gontse Mpshe

[Secretary's Name]

[Secretary's Signature]